

24SMCV01094 24SMCV01094

County: los-angeles

Division: Civil Law and Motion

Department: N

Hearing date: 2026-07-30

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SM%20%2CN%2C07%2F30%2F2026

Source SHA-256: 8fdb27f07eae6abf33698cf43cf30b554d1b1df96ce99f9c37651e35433f5241

Case Number: 24SMCV01094 Hearing Date: July 30, 2026 Dept: N

TENTATIVE RULING

Plaintiff/Cross-Defendant American Express National Bank's Motion for Summary Judgment, or in the Alternative, for Summary Adjudication of Issues is GRANTED in the amount of \$96,335.73. Costs shall be determined by statute. Attorney fees shall be determined pursuant to a noticed motion.

Plaintiff/Cross-Defendant American Express National Bank to give notice.

Background

In its complaint, Plaintiff alleges in its common counts claim that Defendant failed to pay off a credit card in the amount of \$96,335.73, specifically failing to pay \$75,375.14 on one credit card, \$20,518.05 on a second credit card, and \$442.54 on a third credit card. (Compl., p. 3.) In the cross-complaint, Defendant alleges in his common counts cross-claim that he overpaid a credit card bill and was entitled to a refund of \$25,000. (Cross-Compl., p. 3.) The required elements of a common count claim are "(1) the statement of indebtedness in a certain sum, (2) the consideration, i.e., goods sold, work done, etc., and (3) nonpayment. A cause of action for money had and received is stated if it is alleged the defendant is indebted to the plaintiff in a certain sum for money had and received by the defendant for the use of the plaintiff." (Farmers Insurance Exchange v. Zerín (1997) 53 Cal.App.4th 445, 460, citation and quotation marks omitted.)

Plaintiff provides evidence that Defendant was the holder of an American Express Blue Cash Everyday Card account ending in 2006 that enabled him to charge items to the credit card account, he was responsible for paying all amounts charged to the account, he agreed to all terms and conditions set forth in the agreement between him and Plaintiff, he used the account to charge items to the account for which there is a delinquent balance due and owing, monthly statements were sent, a balance is due of \$75,375.14 on the account, there are no unresolved billing disputes on the account, and Defendant has failed to make the payments due as set forth in the final card statement for account 2006. (Pl.'s UMF Nos. 4-11.) Plaintiff also provides evidence that Defendant was the holder of an American Express Business Platinum Card account ending in 7008 that enabled him to charge items to the credit card account, he was responsible for paying all amounts charged to the account, he agreed to all terms and conditions set forth in the agreement between him and Plaintiff, he used the account to charge items to the account for which there is a delinquent balance due and owing, monthly statements were sent, a balance is due of \$20,789.94 on the account, there are no unresolved billing disputes on the account, and Defendant has failed to make the payments due as set forth in the final card statement for account 7008. (Pl.'s UMF Nos. 12-19.) Plaintiff provides further evidence that Defendant was the holder of an American Express Platinum Card account ending in 4001 that enabled him to charge items to the credit card account, he was responsible for paying all amounts charged to the account, he agreed to all terms and conditions set forth in the agreement between him and Plaintiff, he used the account to charge items to the account for which there is a delinquent balance due and owing, monthly statements were sent, a balance is due of \$442.54 on the account, there are no unresolved billing disputes on the account, and Defendant has failed to make the payments due as set forth in the final card statement for account 4001. (Pl.'s UMF Nos. 20-27.)

This evidence allows Plaintiff to meet its burden of establishing that there is no triable issue of material fact as to its claim for common counts and Defendant's cross-claim for common counts, as there is an outstanding balance due on each card, such that there can be no viable claim of overpayment. Defendant has not opposed the present motion, thereby failing to establish that a triable issue of material fact exists as to any of the claims. Accordingly, Plaintiff/Cross-Defendant American Express National Bank's Motion for Summary Judgment, or in the Alternative, for Summary Adjudication of Issues is GRANTED in the amount of \$96,335.73. Costs shall be determined by statute. Attorney fees shall be determined pursuant to a noticed motion.